

Court No. - 39

Case :- WRIT - C No. - 3921 of 2019

Petitioner :- Dr. Anoop Awasthi

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Babu Lal Ram, Sushil Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri Babu Lal Ram, learned counsel for the petitioner, Sri Ajay Krishan, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for the respondents no.4&5 and the learned Standing Counsel for Respondents no. 1, 2 and 3.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 24.09.2018 as well as recovery order dated 11.12.2018 whereby a sum of Rs. 6,93,708/- is sought to be recovered from the petitioner towards electricity dues.

The case of the petitioner is that his wife is running a Nursing Home in which an inspection was conducted by the team of Electricity Department. Thereafter a First Information Report was lodged in which charge-sheet has also been submitted by the Police.

The contention of the petitioner is that the electricity connection is in the name of his wife Dr. Ruchi Singh whereas the recovery citation has been issued against him.

Since this is the matter of theft, in our opinion, the petitioner has a remedy under Clause 6.8 of the Electricity Supply Code, 2005 by approaching the Executive Engineer, Dakshinanchal Vidhyut Vitran Nigam Ltd., Jalaun-respondent no.5.

This writ petition is, therefore, **disposed of** with a direction that if the petitioner appears before the respondent no. 5-Executive Engineer, Dakshinanchal Vidhyut Vitran Nigam Ltd., Jalaun **on 13.02.2019 at 11:00 a.m.** along with certified copy of this order as well as his representation/objection, the respondent no.5 shall hear the petitioner and decide the representation/objection of the petitioner, in accordance with law, within a further period of fifteen days.

Subject to the petitioner complying with the direction given hereinabove, the recovery in pursuance of the recovery citation dated 24.09.2018 and order dated 11.12.2018 shall remain in

abeyance and shall be subject to any final order which may be passed by the respondent no.5.

It is made clear that the court has not adjudicated the claim of the petitioner on merit.

Order Date :- 5.2.2019

JK Yadav